Risk Matrix for Assessing Potential Foreign Interference & Risk Mitigation

	Factor 1: Foreign Talent Recruitment Programs (FTRPs)	Factor 2: Funding Sources	Factor 3: Patents	Factor 4: Entity Affiliation	Factor 5: Entity Collaborations	Approval Authority+
LEVEL 5: High Risk Elimination Recommended	Indicators of active (ongoing) participation in a malign foreign talent recruitment program (MFTRP)	None	None	Individuals currently affiliated with institutions that are considered entities of concern* at the time of review	Have active/ongoing collaborations for fundamental research with individuals affiliated with or institutions that are considered entities of concern* at the time of review	• EVP ***and*** • President
LEVEL 4: Mitigation Measures Required	**Within the previous 24 months:** Indicators of past participation in a MFTRP	Indicators that the covered individual is currently receiving funding from a Foreign Country of Concern (FCOC) or an FCOC-connected entity	Patent applications or patents not disclosed, that resulted from research funded by the U.S. Government (USG), that were filed in an FCOC prior to filing in the United States or filed on behalf of an FCOC-connected entity	**Within the previous 36 months:** Indicators of affiliation with an entity of concern*	**Within the previous 36 months:** Indicators of significant collaboration with an entity of concern*	• Dean/ VPR
LEVEL 3: Mitigation Measures Expected	**Within the past 2-5 years:** Indicators of past participation in a MFTRP OR Indicators of undisclosed or incompletely disclosed active (ongoing) participation in a FTRP	**For the period after Oct 10, 2019:** Indicator(s) that the covered individual received funding from an FCOC or an FCOC connected entity OR Indicators of undisclosed or incompletely disclosed active (ongoing) foreign funding from a foreign country or foreign entity that is not a Foreign Country of Concern (FCOC) or an FCOC-connected entity	Patent applications or patents disclosed in proposal resulting from research funded by the USG that were filed in a FCOC, or on behalf of a FCOC-connected entity, prior to filing in the United States	Any Indicators of an undisclosed or incompletely disclosed active (ongoing) affiliation with an institution or entity located in or connected to a Foreign Country of Concern (FCOC) OR **Within the previous 3-5 years**:Indicators of affiliation with an entity of concern*	Any Indicators of an undisclosed or incompletely disclosed active (ongoing) research activities with an institution or entity located in or connected to a Foreign Country of Concern (FCOC) OR **Within the previous 3-5 years**: Indicators of significant collaboration with an entity of concern*	• Dept. Chair
LEVEL 2: Mitigation Measures Recommended	**For the period after October 10, 2009:** Indicators of past participation in a MFTRP	**For the period after October 10, 2009:** Indicator(s) that the covered individual received limited or partial funding from an FCOC or an FCOC connected entity OR **In the past 5 years:** Indicators of undisclosed or incompletely disclosed active (ongoing) funding from a foreign country or foreign entity that is not a Foreign Country of Concern (FCOC) or an FCOC-connected entity	Patent application(s) or patent(s) not disclosed in fundamental research project proposal that resulted from research funded by the USG that were filed in a non-FCOC, or on behalf of an entity in a non-FCOC, prior to filing in the United States OR Co-patent(s) application(s) with a person on a restricted party list* OR Co-patent(s) applications(s) with an individual affiliated with any entity of concern*	Any active (ongoing) affiliation with an institution or entity located in or connected to a Foreign Country of Concern (FCOC) OR **Within the previous 5-10 years:** Indicators of affiliation with an entity of concern*	**For the period after October 10, 2019:** Indicators that co-author(s) on publications are participants in an MFTRP OR Any active (ongoing) research activities with an institution or entity located in or connected to a Foreign Country of Concern (FCOC) OR **Within the previous 5-10 years:** Indicators of significant collaboration with an entity of concern*	• PI
Level 1: No Mitigation Needed	No indicators of past participation in a MFTRP.	No indicators that the covered individual is receiving, or has received, funding from a FCOC or a FCOC-connected entity.	All patent applications or patents resulting from research funded by the USG have been filed in the United States prior to filing in any other country.	**>10 years prior:** Any prior affiliation with an institution or entity located in or connected to a Foreign Country of Concern (FCOC)	**>10 years prior:** Any prior collaboration with an institution or entity located in or connected to a Foreign Country of Concern (FCOC)	• PI

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Reference Links

NIH Decision Matrix

DOD Decision Matrix

Definitions

Affiliation: Academic (not including undergraduate or graduate students), professional, or institutional appointments or positions with a foreign government or a foreign government-connected entity, whether full-time, part-time, or voluntary (including adjunct, visiting, post-doctoral appointment, or honorary).

Applied Research: Original scientific investigation undertaken in order to acquire new knowledge and directed primarily towards a specific practical aim or objective.

Basic Research: Experimental or theoretical work undertaken primarily to acquire new knowledge of the underlying foundations of phenomena and observable facts.

Confucius Institute: As defined in section 1044(b)(2) of the NDAA for FY 2024, a Confucius Institute is "any program that receives funding or support from the Chinese International Education Foundation, the Center for Language Exchange Cooperation of the Ministry of Education of the People's Republic of China, or any cultural institute funded by the Government of the People's Republic of China." A cultural institute does not need to be named a "Confucius Institute" to be deemed one.

Covered Individual: An individual at an extramural research institution who, as designated by the extramural research institution, contributes significantly to the design or execution of a research and development project that is funded, in whole or in part, by the DoD, and who is considered essential to the successful performance of the research and development project. Covered individuals include those listed as key personnel in fundamental research project proposals (e.g., the principal investigator or co-principal investigator).

DoD Component: A Military Department, Defense Agency, DoD Field Activity, or organization within the Office of the Secretary of Defense.

Entity: An organization, including government organizations, non-governmental organizations, and private corporations, whether foreign or domestic.

Entity in a Non-Foreign Country of Concern: An organization, including government organizations, non-government organizations, and private corporations, incorporated in a non-foreign country of concern or physically located in a non-foreign country of concern.

Extramural Research Institution: Any institution of higher education, independent research institution, Federally Funded Research and Development Center, or any other entity where DoD-funded research and development is conducted. Extramural research institutions do not include DoD laboratories or other laboratories that are owned and operated by the Federal Government.

Foreign Country of Concern: The People's Republic of China, the Democratic People's Republic of Korea, the Russian Federation, and the Islamic Republic of Iran.

Foreign Entity of Concern: As defined in section 10638(3) of the CHIPS and Science Act of 2022 (Public Law 117-167), a foreign entity that is:

- Designated as a foreign terrorist organization by the Secretary of State under section 219(a) of the Immigration and Nationality Act (8 U.S.C. 1189(a));
- Included on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury (commonly known as the SDN List);
- Owned by, controlled by, or subject to the jurisdiction or direction of a government of a foreign country that is a covered nation (as defined in section 4872 of Title 10, U.S.C.);
- Alleged by the Attorney General to have been involved in activities for which a conviction was obtained under:
    - Chapter 37 of Title 18, U.S.C. (Espionage Act)
    - Section 951 or 1030 of Title 18, U.S.C.
    - Chapter 90 of Title 18, U.S.C. (Economic Espionage Act of 1996)
    - The Arms Export Control Act (22 U.S.C. 2751 et seq.)
    - Sections 224–227, or 236 of the Atomic Energy Act of 1954 (42 U.S.C. 2274–2277, 2284)
    - The Export Control Reform Act of 2018 (50 U.S.C. 4801 et seq.)
    - The International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)
- Determined by the Secretary of Commerce, in consultation with the Secretary of Defense and the Director of National Intelligence, to be engaged in unauthorized conduct detrimental to U.S. national security or foreign policy.

Foreign Government-Connected Entity: An organization, including government organizations, non-governmental organizations, and private corporations, owned or operated directly or indirectly by a foreign government.

Fundamental Research: As defined in National Security Decision Directive 189 (Sept 21, 1985), fundamental research is basic and applied research in science and engineering conducted at colleges, universities, and laboratories, the results of which are ordinarily published and shared broadly within the scientific community.

Fundamental Research Project Proposal: A proposal for funding to be provided to an individual or entity, in whole or in part, by a Federal research agency to carry out fundamental research activities through grants, cooperative agreements, contracts, and other transactions.

Malign Foreign Talent Recruitment Program: As defined in section 10638(4) of the CHIPS and Science Act of 2022 (Public Law 117-167), this includes programs offering compensation or benefits from a foreign country or entity in exchange for activities such as unauthorized transfer of intellectual property, recruitment, establishing foreign labs, or violating terms of federal research awards. It also includes programs sponsored by:

- A foreign country of concern or its entities

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- Academic institutions listed under section 1286(c)(8) of the John S. McCain NDAA for FY 2019
- Foreign talent recruitment programs listed under section 1286(c)(9) of the same NDAA

Mitigation of Research Security Risk: The action of reducing the severity or effects of research security risks identified in a fundamental research project proposal. Mitigation is determined case-by-case at the program level.

NIH Current and Pending Support: All R&D projects currently under consideration from whatever source, and all ongoing projects, irrespective of whether support is provided through the proposing organization, another organization, or directly to the individual, and regardless of whether the support is direct monetary contribution or in-kind contribution (e.g., office/laboratory space, equipment, supplies, or employees). (NSPM-33 Implementation Guidance)

NIH Organizational Affiliations: academic, professional or institutional appointments, whether or not remuneration is received, and whether full-time, part-time, or voluntary; paid consulting that falls outside of an individual's appointment; separate from institution's agreement. (NSPM-33 Implementation Guidance)

Participation in a Malign Foreign Talent Recruitment Program: Includes affiliation, membership, contractual agreement, or identification in publications or proposals indicating involvement in such programs.

Proposing Institution: An institution of higher education, independent research institution, Federally Funded Research and Development Center, or any other entity submitting a fundamental research project proposal for DoD funding.

Research and Development: Creative and systematic work undertaken to increase knowledge and devise new applications. Includes research in various fields and involving human subjects or animals, regardless of funding source.

Research Integrity: Standards promoting objective, transparent, merit-based, and reciprocal research collaborations. Includes full disclosure of financial/time obligations, merit-based recruitment, and respect for intellectual property rules.

Research Security Risk: Increased likelihood of misappropriation of research results or efforts, harming national or economic security, and involving violations of research integrity or foreign government interference.

Significant Research Collaboration: Any substantive, sustained, and meaningful joint scientific activity that contributes to the scientific development or execution of a research and development project. This includes:

- Co-development of research products, intellectual property, or technologies.
- Shared use of research infrastructure, materials, data, or personnel.
- Joint authorship of proposals
- Collaborative participation in research programs, including formal agreements or informal arrangements that influence the direction, scope, or outcomes of the research.

Such collaborations are usually considered significant when they involve:

- ongoing or repeated engagement over time.
- access to sensitive research data/outputs.
- meaningful contributions to publications.
- substantial contribution to the research concept, design, data or interpretation;
- Drafting or critically revising the manuscript;
- Approving the final version of the publication;
- Agreeing to be accountable for the integrity of the work.

***Entities of Concern/Restricted Party Lists**

Entities of Concern are those included on the following restricted party lists:

- BIS Entity List
- NDAA Lists
- OFAC SDN List
- ASPI institutions with High and Very High designations
- BIS Denied Persons List

Entities of Minimal Concern

- BIS Unverified List
- ASPI Medium and Low Risk
- TX Lists
- OIG Lists
- GSA

+ Approval Authority: Approval will escalate through each level until highest level approval or denial is received. Ex. Level 3 requires PI and Department Chair Approval. Level 5 requires PI, Dept. Chair, VPR/Dean, EVP, and President. Legal Affairs may be consulted at any level as determined necessary by the Research Security Officer, or one of the approvers. If denied at any point, it will not escalate to the next level.

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